

refused the respondent's request for referral to the Enlarged Board. The board considered that, regardless of whether or not the librarian is considered a member of the public (as was the issue in decision [T 834/09](#)), there was persuasive evidence that documents at issue were made available to the public before the priority date of the present patent.

3.4. Obligation to maintain secrecy

3.4.1 General

A disclosure is regarded as made available to the public if, at the relevant date, it was possible for members of the public to gain knowledge of its contents and there was no bar of confidentiality restricting the use or dissemination of such knowledge ([T 877/90](#); see also [T 2239/15](#)).

If the person who was able to gain knowledge of the invention was under an obligation to maintain secrecy, the invention cannot be said to have been made available to the public, provided the person did not breach that obligation. If the obligation to maintain secrecy stems from an **express** agreement that has been observed, the information has not been made available to the public. Less clear cut are cases of **tacit** secrecy agreements. Whether a tacit secrecy agreement between parties exists, depends on the peculiar circumstances of the specific case ([T 1081/01](#), [T 972/02](#), [T 1511/06](#)), e.g. the commercial inter-relationship between and the commercial interests of the companies involved ([T 913/01](#); see also [T 830/90](#), OJ 1994, 713, [T 782/92](#), [T 37/98](#), [T 72/16](#)).

In [T 1081/01](#) the board held that information provided subject to a confidentiality agreement did not become available to the public merely by reason of the expiry of the obligation to keep it confidential. Some separate act of making it available to the public would be needed. This conclusion was in agreement with the conclusion reached in [T 842/91](#), where permission to publish a text was considered merely as permission to make the text available to the public, and not as actually making the text available to the public. In [T 833/99](#) the board observed that there was no law to the effect that the confidentiality governing tender procedures ends when they do.

3.4.2 Parts for serial production

In [T 1168/09](#) two prior uses were alleged: the supply of 170 ESG 400 control units and the supply of 111 143 ESG 300/600 control units. No information had been submitted with regard to the conditions of supply and, in particular, as to whether or not confidentiality had been agreed. The board therefore investigated whether, in the light of the business relationship between the supplier and the customer, it had to be presumed that an obligation to maintain secrecy had been tacitly agreed. A tacit obligation to maintain secrecy could be presumed, for instance, where business partners had a shared interest in confidentiality. However, such an interest could only be presumed until the parts had been supplied for serial production because, from then on, the parts were destined to be fitted in cars for sale and so made available to the public. In other words, a shared interest in confidentiality could no longer be presumed once parts had been delivered for serial production (see [T 1512/06](#)). In the case at hand, the board found that the large number of

control units supplied suggested that they had not been test units. It therefore held that they had been publicly available.

In T.1309/07 the board ruled that it was clear from the file that 17 520 combustion-engine pistons of a certain type had been supplied to Renault before the priority date. The question was whether, at the time of delivery, a tacit secrecy agreement had applied. In view of the large quantity involved, and the fact that pistons of this type were offered in a pre-published spare-parts catalogue, the board took the view that they had been supplied not for test purposes but for normal series production, so from that point onwards no such agreement could have existed.

3.4.3 Distribution of prospectuses, technical descriptions

In T.173/83 (OJ 1987, 465) and T.958/91 the board held that a technical description sent out to clients could not be regarded as secret information.

The board in T.2056/13 held, in relation to an operating manual with a **copyright notice**, that such notices did not normally imply an obligation to maintain secrecy. That there had been none in this particular case was anyway clear from the manual itself, which mentioned the possibility of its sale and dissemination and was therefore prior art for the purposes of Art. 54(2) EPC. (Argument of the opponent that copyright protection does not necessarily imply that the content is confidential rejected by the board in the circumstances of the case T.1570/14 – a joint development project.)

3.4.4 Commercial relationships and interests

In the following cases, the boards found that there was an (implicit) obligation to maintain secrecy:

In T.1085/92 the board took the view that, where contractual relations and development agreements existed, a secrecy agreement could be assumed to exist. Such an agreement does not necessarily have to be a contract made in writing, as an implicit or implied agreement could also be taken into account (T.838/97, T.818/93). On implicit confidentiality obligations and their duration, see e.g. T.830/90 (OJ 1994, 713), T.201/13 and T.72/16. In T.2/09 the board took the view that, where a party's own interest in secrecy could be established, then the situation would be analogous to that of a non-disclosure agreement between the parties involved. In this particular case (test case on public availability of an e-mail transmitted via the internet) the board held that an internet service provider had a business interest of its own in keeping secret (i.e. not forward to third parties) the emails to which it had access.

In T.799/91 the opponents asserted that the subject-matter claimed had been in prior public use in that its manufacture had been "sub-contracted out" to a third company. According to the board the third company was not simply any third party because the opponents' decision to place an order was based on a relationship of trust. The board therefore saw no indication of there having been prior public use, nor could the claim have been substantiated by the testimony of any witness.

In T.1829/12 it was not in dispute that an explicit non-disclosure agreement had been entered into, but the appellant (opponent) contended that it had been of limited scope and had not covered the sensor unit at issue. The board rejected its contention as being at odds with normal business practice. No convincing reasons had been put forward as to why the sensor unit, of all things, should not have been covered by the explicit non-disclosure agreement.

In T.2170/12, in which the public availability of a project report was in dispute, the opponent had produced a statement by one of the report's authors that there had been no confidentiality obligation restricting the use or dissemination of any project information. The board, however, found that the report appeared to have been circulated only among people working on the project (which, the proprietor maintained, implied its confidentiality). It did not seem to have been sent to a wide circle and there was no specific evidence to support what the author had said in his statement. Considering also the short interval in question (less than four months), the board held that the report's public availability during this time had not been sufficiently proven and ultimately disregarded it as prior art for the purposes of examining inventive step.

In T.833/99, during invitations to tender, the municipal employees had been required to observe confidentiality. The appellant (opponent) said they might have breached that confidentiality, e.g. by informing repair workers of certain steps in the process, but did not back this up with firm facts such as dates, circumstances, etc., or with other evidence. Mere suppositions could not be entertained; they were not proof, and the onus was on the appellant to show that its allegations were well founded. Lastly, the board observed that there was no law to the effect that the confidentiality governing tender procedures ends when they do.

In T.2702/18 the board, considering what standard business practice would normally dictate, was convinced that a supplier and the patent proprietor as its customer had been bound by a relationship of trust of the kind typical in the sector and forbidding the supplier from disclosing the customer's trade secrets which came into its possession in the course of their co-operation to just any third party. The supplier had thus been obliged on principle to treat the patent proprietor's development results not intended for public consumption as confidential. However, that did not mean it had equally been obliged to maintain secrecy as regards what it knew, or learned through the co-operation, about devices its customer had already made publicly available in the past.

Finally, contrasting with the above, a particular example of the absence of an implied obligation of confidentiality in case T.1798/14 took the form of a witness's visit to a firm's premises. It was in dispute whether he had been subject to an obligation to maintain secrecy, something he had repeatedly denied in his testimony. The respondent (patent proprietor) argued that he might nonetheless have been under such an obligation without knowing it. The board observed that it was not normally possible to furnish positive proof of the **non-existence of a fact** (here, an obligation). However, the non-existence of an agreement could instead be proven by showing that those who ought to have been informed were unaware of it. The business relationship between the witness and the

company in question concerned a technical field that was not related to the said site visit. The board concluded that there had been no tacitly agreed obligation.

3.4.5 Demonstrating products for presentation purposes

In T. 634/91 the claimed prior public use consisted of the presentation of a circular saw at an opponent's place of business during a meeting between the patent proprietor and a potential buyer. Without elucidating further, but referring to the decision in T. 830/90 (OJ 1994, 713), the board held that such talks constituted a tacit understanding to maintain secrecy.

In case T. 478/99 a demonstration was made by two potential clients. It could not be proven that a confidentiality agreement existed. The board held that the sole absence of an explicit request for confidentiality was not sufficient to conclude that there was no confidentiality, because secrecy may result from an ethical code of conduct for the employees of big companies such as the two clients in question. Consequently, the board considered the alleged public prior use not to be proven.

In T. 823/93 of 18 October 1996, according to the board, the development of a new apparatus is usually kept secret from competitors. In the case at issue, the development of the apparatus had to be regarded as the result of co-operation between the opponent and the client. The board therefore took the view that, on the basis of these facts, it could be assumed that none of the parties had an interest in disclosing any information about the apparatus and it was likely that the technical reports exchanged between the parties were tacitly required to be treated as confidential. The board also held that the general conditions of business, which had become the conditions of contract and required the plans, designs and other documents to be handled confidentially, also extended to verbal information and details given during the presentation of the apparatus.

In T. 292/93 the board ruled that a demonstration conducted for a small group of potential customers on the premises of a company with close links to the opponent was inconsistent with the existence of an obligation to maintain secrecy.

3.4.6 Presenting the product in writing

In T. 541/92 a sub-contractor had given sketches of a device to its client. In the board's view this constituted an obligation to maintain secrecy. It was standard practice for clients and their subcontractors to keep their projects secret, and allegations to the contrary required convincing proof. Likewise in T. 887/90 the obligation to maintain secrecy was derived from the circumstances.

In T. 1076/93 the opponents had, without there having been an explicit agreement to maintain secrecy, had offered an apparatus which caused the subject-matter of the invention to lack novelty and had provided drawings to a weapons manufacturer. The board held that the prior use did not cause lack of novelty, because a variety of circumstances pointed to there having been an obligation to maintain secrecy. According

to the board, discretion was generally acknowledged to be the rule on the premises of such companies.

In T. 818/93 several steps and approaches had been taken within the context of business relationships which were necessary to bring the project to a successful conclusion. The board held that such negotiations were confidential by nature, in view of the comparable interests of the parties involved, and implied a secrecy agreement.

In T. 480/95 the document relied upon by the opposition division as a prepublication decisive for the evaluation of inventive step was a letter from the opponent to a customer written in connection with a contractual relationship between the two firms. The board considered this letter to be a typical example of correspondence between contracting firms, which was confidential by its very nature.

3.4.7 Making samples/products available for test purposes

In the following cases, the boards found that there was an obligation to maintain secrecy:

A product made available for test purposes is to be treated as confidential. Sale of the product in a limited quantity is regarded as sale for test purposes, if the product is normally sold in large quantities (see T. 221/91, T. 267/91 and T. 782/92). In T. 221/91, the board held that it was for the patent proprietors to prove the existence of an obligation to maintain secrecy when the opponents had proved that the invention had been made available to the public and the patent proprietors had claimed the existence of a secrecy agreement (see also T. 1407/09).

In T. 37/98 a limited quantity of tape laminates had been delivered to three customers of the appellant. The delivered material had been used exclusively for test purposes, even after the priority date of the patent in suit. This was confirmed by the fact that such a laminate was usually delivered in large quantities. The board concluded that the delivered material had to be treated as confidential. In a case where only test specimens were sent to a customer, it had to be assumed in principle that at least an inherent secrecy agreement existed. If this should exceptionally not be true, the exception from the usual practice had to be proved. The mere statement that there was no secrecy agreement, as made in the present case, was not sufficient for this purpose.

According to the board in T. 1847/12, the relationship between a firm and another that it contracted to develop and deliver prototypes could not be treated as equivalent to that between a dealer and a customer. General experience showed that a vehicle became publicly available when the manufacturer delivered it to a dealer, because then anyone could buy it. But the same did not go for a delivery under a development contract. The development itself takes place in a confidential way. The board on this occasion made some observations on the status of third party. The board found that the written statement made by an employee of the contractor (Schrack GmbH) that, "as far as [he] knew", the prototypes had been delivered to the client (Opel) without any duty to maintain confidentiality was irrelevant because it was the client placing a contract, not the contractor, that decided whether confidentiality applied, i.e. here it had been for Opel, as